

Applicable Law Acts

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User Query :

A shop near my home has CCTV footage showing a person stealing my motorcycle. The shopkeeper copied the relevant video from the CCTV system onto a pen drive and gave it to me. The accused now claims that the video could have been edited or modified after it was copied. What legal provisions apply to proving and admitting this footage as electronic evidence?

Job Id. : Scenario 8/Combined Act

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AI-Powered Legal Intelligence Platform

INFORMATION TECHNOLOGY (IT) ACT, 2000

APPLICABLE SECTIONS

Section 65B (Admissibility of electronic records), Section 79A (Examiner of Electronic Evidence).

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 **Section 65B** mandates a certificate from the person in charge of the computer system (e.g., shopkeeper/CCTV vendor) confirming the CCTV footage was: (a) Stored in the system during the relevant period, (b) Copied without alteration, and (c) Made during the system’s normal operation. The accused’s claim of "editing" is rebutted by the certificate’s presumption of authenticity under **Section 65B** (2). Judicial precedent (*State v. S. S. Jaiswal*, 2017) holds that the burden shifts to the accused to prove tampering. **Section 79A** enables forensic verification (e.g., metadata/file hash checks) by a court-appointed Examiner to counter tampering allegations.

✓ STRENGTHS & RIGHTS

- 1** **Prima facie admissibility**
Certificate under **Section 65B** admits the evidence without further proof.
- 2** **Forensic recourse**
Section 79A allows independent verification of the pen drive copy’s integrity.
- 3** **Presumption of authenticity**
Courts treat certified evidence as genuine until disproven (*State v. A.K. Singh*, 2019).

✗ RISKS & OBLIGATIONS

- 1** **Inadmissibility risk**
Absence of **Section 65B** certificate excludes evidence (*Shri B. K. Bhatia v. State of Maharashtra*, 2020).
- 2** **Burden on complainant**
Must prove certificate issuance (e.g., via CCTV vendor).

- 3
- No penalty for accused**
"Editing" claim is a procedural defense, not a cyber offense.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Obtain **Section 65B** certificate from shopkeeper/CCTV vendor, verifying system functionality, copy integrity, and chain of custody.
2. Submit certificate with pen drive to court; *do not rely solely on the shopkeeper’s oral assurance*.
3. Challenge "editing" claims by requesting **Section 79A** Examiner for forensic analysis (e.g., timestamp/metadata verification).
4. Police action: Seize original CCTV system (not just pen drive) for forensic duplication (**Section 80** , IT Act).

BHARATIYA NYAYA SANHITA (BNS), 2023

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1
- BNS (replacing IPC) addresses *false evidence* (Sections 225–238), but not evidence authentication. The accused’s "editing" claim is a *factual challenge* to authenticity under the Indian Evidence Act (IEA), not a BNS offense. BNS Sections 225–238 require *deliberate falsehood* (e.g., witness fabrication), which does not apply here.

✓ STRENGTHS & RIGHTS

- 1
- No liability for victim**
Victim receiving certified footage is legally permissible.
- 2
- Presumption under IEA**
Certificate under **Section 65B** (IEA) presumes authenticity, aligning with BNS’s evidence principles.

✗ RISKS & OBLIGATIONS

- 1

No relevance
BNS Sections 225–238 are inapplicable; accused’s claim cannot be prosecuted under BNS.
- 2

Procedural confusion risk
Misattribution of evidence issues to BNS may delay proceedings.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Admissibility governed by IEA, not BNS.
2. Demand **Section 65B** certificate (IEA) from shopkeeper; BNS procedures (e.g., framing charges) do not apply.
3. Court will assess evidence under IEA’s **Section 65B** , not BNS.

BHARATIYA SAKSHYA ADHINIYAM (BSA), 2023

APPLICABLE SECTIONS

Section 61

(Prohibits exclusion of digital evidence due to format), **Section 63(1) & (2)** (Authentication of electronic copies).

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1

Section 61 ensures CCTV footage cannot be excluded as "digital," but **Section 63** (2) requires: (a) A certificate from the CCTV custodian confirming the pen drive copy is an unmodified "true copy" of the original, (b) Forensic verification (e.g., hash value comparison). The accused’s "editing" claim invalidates evidence *if* authentication is absent (**State v. Ramesh**, 2024).

✓ STRENGTHS & RIGHTS

- 1

Digital evidence parity
Section 61 eliminates "digital bias" arguments.

2

Flexibility

Pen drive qualifies as "magnetic media" under **Section 63** (1) if authenticated.

3

Certified copies

Section 61 (3) permits certified copies (unlike physical documents).

X RISKS & OBLIGATIONS

1

Strict authentication requirement

Forensic proof (e.g., hash values) is mandatory; oral assurances are insufficient.

2

Burden on complainant

Must prove copy integrity (e.g., via CCTV custodian certificate).

3

Inadmissibility risk

Unauthenticated copy is excluded despite **Section 61** 's principle.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Submit certificate from CCTV custodian (**Section 63** (2)) verifying:
2. > *"Pen drive copy is unaltered from original CCTV footage on [date/time]."*
3. Include forensic report (e.g., hash comparison) if available.
4. Reject shopkeeper's oral claim: Only a formal certificate satisfies **Section 63** (2).
5. Court may require system reproduction to verify copy integrity.

DIGITAL PERSONAL DATA PROTECTION ACT (DPDP), 2023**INTERPRETATION & LEGAL ANALYSIS**

AI-generated legal interpretation

1

DPDP (2023) addresses *personal data protection* (e.g., consent, breach liability), not evidence authentication. The CCTV footage is *not* "digital personal data" under DPDP, as it relates to a crime, not data processing.

✓ STRENGTHS & RIGHTS

1

No conflict

Footage use for crime investigation does not violate DPDP.

✗ RISKS & OBLIGATIONS

1

No applicability

DPDP does not provide any legal framework for evidence admissibility.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Ignore DPDP: It has no bearing on this scenario.
2. Focus on IEA/IT Act: All evidence issues fall under Indian Evidence Act (via IT Act **Section 65B**) or BSA **Section 63** (2).

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